

STATEMENT OF WORK

Engineering Conference Room

High Performance Wall System

24 March 2026 rev 4

VA Southern Nevada Healthcare System (VASNHS)

9600 N. Pecos Road

North Las Vegas, NV

89086



I. JUSTIFICATION:

The VA Southern Nevada Engineering Services Department requires a modular wall system to enclose a conference room area within the Office Section due to shared office space with Community Care Providers. In providing the space, it will allow the Engineering Conference Room area to be enclosed with a Sound Transmission Class (STC) rating of 45-55, ensuring compliance with HIPAA and VA-specific regulations. The demountable walls described herein will provide a conference/consult space that is quiet, HIPAA compliant, allowing both services within the same space to be able to utilize the area while preventing sensitive information from being overheard.

II. SCOPE OF WORK:

The selected contractor shall be required to furnish, deliver, and install new modular, demountable architectural wall systems to the first floor of Building 6, room 1H112 at VA Southern Nevada Healthcare System, Main campus enclosing approximately 25' x 25' (625 sf) of open space. The timeframe for delivery receipt shall be no later than 7 weeks following award of contract, with coordination of specific dates mutually agreed upon by the VA Southern Nevada Healthcare System Engineering Department and the selected contractor.

The vendor shall field verify the space before placing a final order. This assembly shall be developed with the awarded vendor with use of the materials outlined within. The vendor responding to the solicitation shall provide the required furnishings as noted on the attached drawing, described in the performance-based technical specification, and described here within. The attached technical based specification describes the minimal materials, construction, and technical requirements.

Contractor will provide assemblies with incidental installation, comprehensive project management, and delivery and freight.

III. HOURS OF OPERATION & HOLIDAYS

Normal duty hours are 7:30 AM – 4:00 PM, Monday thru Friday not including standard Federal Holidays. Federal Holidays can be obtained on OPM's website (www.opm.gov). For any work outside of normal work hours, the awardee is required to submit their change order request in writing to the Contracting Officer while furnishing a courtesy copy to the COR and Contract Specialist. All work performed shall be coordinated and scheduled through the COR. Any off-duty work must be coordinated with the COR at least 2 weeks (14 calendar days) prior to work taking place.

IV. QUOTE REQUIREMENTS:

All quotes shall be formatted appropriately as shown below to ensure a consistent basis for comparison:

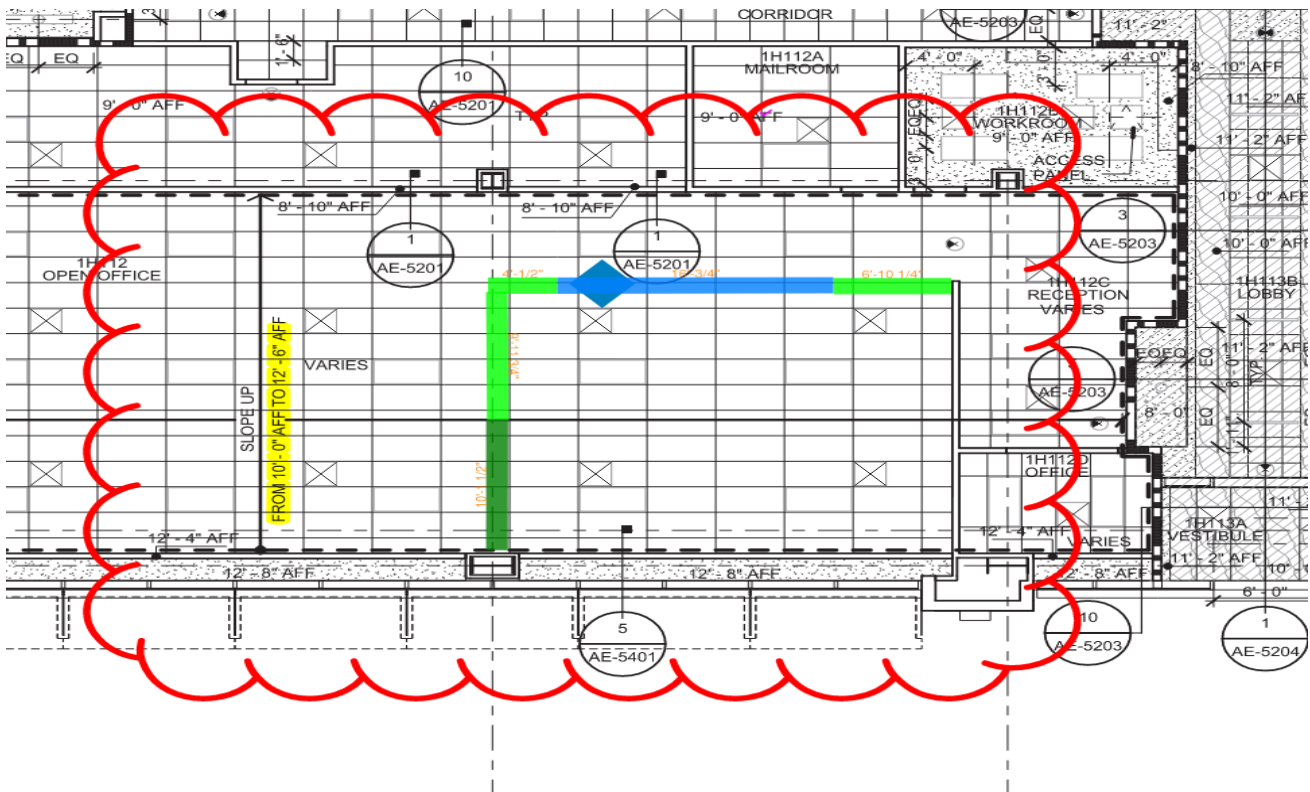
<u>Line Item</u>	<u>Description</u>	<u>Quantity</u>
1	Glass Doors, Frames, Hardware	(1)

2	Glass Wall Assembly	(1)
3	Solid Wall Assembly & Finishes	(1)

Building system shall be wholly inclusive of all required components. DO NOT break out costs for any parts, pieces, or COMs in either the cost or extended cost columns.

- Comprehensive freight, installation, and any associated project management fees to be indicated as a single final line-item amount.
- All brand name or equal product quotes must include an itemized price breakdown and a comprehensive technical package for review. The technical package shall include 2D and 3D drawings of the line items, cut sheets or other documentation supporting the item's brand name or equal salient characteristics.

VI. BRAND NAME OR EQUAL REQUIREMENT: Qty. (1) High Performance Building System Architectural Building System (See the attached Salient Characteristics)



VII. Warranty

1. Warranty for all products shall be for a period of 10 years with a 24 hours per day for administrative product. Parts and labor included. Limitations or exclusions involving materials and components such as lamps and ballasts, wood veneer, and upholstery fabric are acceptable.

2. Substitutions shall be approved by the COR.

Note: Vendor shall provide hard copy data sheets and technical information on the substituted products. Data sheets shall include picture or rendering, make and exact model number, description, cut sheet, price list, and technical information on why substituted item meets SOW requirements. Technical data shall be provided within 10 days of bid submission. Failure to provide all information and samples will be considered an incomplete bid package.

VIII. OTHER CONSIDERATIONS FOR PROPOSAL

1. Dealer shall have in-house services available including interior design, sales, installation, and warehousing capability.

2. Dealer/manufacturer shall have the ability to train and demonstrate to owner facilities and maintenance staff how to adjust, operate, and maintain demountable partitions.

3. Dealer/Manufacturer shall have the following professional associations:

- a. Efficient Data Centers 7x24 Exchange
- b. AFCOM
- c. BICSI

4. Lead-time is a critical factor. Bidders shall present their best lead-time to design, manufacture, ship, and install furniture.

5. If bidder is not the manufacturer of all major components, such as core, surfaces, modular walls, and lift solutions, then the bidder shall specify which manufacturer is being used and include their reference information and experience to determine qualified status.

IX. CONTRACTOR REQUIREMENTS

The contractor shall perform all work under this contract in strict accordance with all safety codes to eliminate the possibility of damage or injury to patients, personnel and equipment or building structures.

Delivery, Assembly, Installation and Storage

1. The contractor shall not be alone in the designated installation space and shall be

always escorted by a VA employee.

2. Point of Contact (POC) for delivery and installation will be the COR.

3. Track all orders to ensure timely delivery and communicate issues to COR.

4. The contractor shall be contacted by the POC at least two weeks prior to date that services are to begin. Pick-up, delivery and installation services are expected to be performed per future information. The contractor shall coordinate delivery times with the POC to confirm that the building is ready for delivery of furnishings. Once confirmation is received, the contractor shall provide the POC with a minimum of 72 hours notification as to date and time that the trucks and crew will be arriving.

5. In the event there is a delay in installation, the contractor shall notify the Government POC immediately.

6. Furniture delivery shall not interfere with the operation of the facility. The contractor shall coordinate the work of the project with the COR to ensure minimal disruption of the Medical Center operations.

7. Foreman shall be available to supervise all installation.

8. Furniture layout and shop drawings will be provided before award; the contractor shall place items in building as identified in the furniture layout. Final furniture layout shall be determined by COR. Furniture layout shall meet the requirements and design intent of ABA, NFPA, OSHA, BIFMA, CAL 117, VA, for all accessibility, life safety, occupational safety, VA, and federal requirements for a business

9. All products shall be installed by manufacturer certified installers with experience working in healthcare environments.

10. The contractor shall uncrate all items received and perform all required assembly in accordance with the manufacturers' instructions. All uncrated material shall be removed from VA property by the contractor.

11. If the contractor is unable to complete the assembly and placement of all unloaded items before the end of the workday, the contractor shall be responsible to move these items to a secure location, until the next available workday (unless storage/staging has been requested and coordinated with the COR). The contractor shall be responsible for moving the items from the overnight storage site to its designated position in the building. The contractor shall coordinate with the POC as to where any excess items are to be stored. The contractor shall be responsible for delivery of excess items to storage area(s) designated by the POC.

12. Post-installation "walk-through" shall be required by manufacturer's Regional Installation Manager and Senior Account Manager to ascertain full compliance with the floor plan, console design, and materials specified. Any inconsistencies will be noted and shall be scheduled for completion prior to signing off on the project.

13. Repair or replace damaged products at the discretion of COR.

X. Product Documentation

1. Vendor shall provide furniture cut sheets, warranty, and delivery schedule.
2. Vendor shall provide O&M manual including warranty, care, manufacturer contact information and compliance certificates to COR at completion of project.

XI. Record Management Statement

The following standard items relate to records generated in executing the contract and should be included in a typical procurement contract:

1. Citations to pertinent laws, codes, and regulations such as 44 U.S.C chapters 21, 29, 31 and 33; Freedom of Information Act (5 U.S.C. 552); Privacy Act (5 U.S.C. 552a); 36 CFR Part 1222 and Part 1228.
2. Contractor shall treat all deliverables under the contract as the property of the U.S. Government for which the Government Agency shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest.
3. Contractor shall not create or maintain any records that are not specifically tied to or authorized by the contract using Government IT equipment and/or
4. Government records.
5. Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected by the Freedom of Information Act.
6. Contractor shall not create or maintain any records containing any Government Agency records that are not specifically tied to or authorized by the contract.
7. The Government Agency owns the rights to all data/records produced as part of this contract.

8. The Government Agency owns the rights to all electronic information
9. (electronic data, electronic information systems, electronic databases, etc.)
10. and all supporting documentation created as part of this contract. Contractors must deliver sufficient technical documentation with all data deliverables to permit the agency to use the data.
11. Contractor agrees to comply with Federal and Agency records management policies, including those policies associated with the safeguarding of records covered by the Privacy Act of 1974. These policies include the preservation of all records created or received regardless of format [paper, electronic, etc.] or mode of transmission [e-mail, fax, etc.] or state of completion [draft, final, etc.].
12. No disposition of documents will be allowed without the prior written consent of the Contracting Officer. The Agency and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. Records may not be removed from the legal custody of the Agency or destroyed without regard to the provisions of the agency records schedules.
13. Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, this contract. The Contractor (and any sub-contractor) is required to abide by Government and Agency guidance for protecting sensitive and proprietary information

XII. Protection of Property

1. The contractor shall protect all items from damage. The contractor shall take precautions against damage to the buildings, grounds and furnishings. The contractor shall repair or replace any items related to buildings or grounds damaged accidentally, or on purpose due to actions by the contractor, utilizing materials of the same quality, size, grade and color, to match existing work.
2. The contractor shall perform an inspection of the buildings and grounds with the POC prior to commencing work. To ensure the contractor shall be able to repair or replace any items, components, buildings, or grounds damaged due to negligence and/or actions taken by the contractor. The source of all repairs beyond simple surface cleaning shall be the responsibility of the facility construction contractor (or

appropriate subcontractor), so that building warranty is maintained. Concurrence of the POC is required before the contractor or anyone other than the facility construction contractor (or its subcontractors) may perform any significant repair work. In all cases, repairs shall utilize materials of the same quality, size, texture, grade and color to match adjacent existing work.

3. The contractor shall be responsible for security of the areas in which the work is being performed prior to completion and transfer to the Government. The contractor shall maintain accountability and control of any keys provided and shall return them

4. to the POC upon completion of the work.

5. Material handling equipment shall have rubber wheels.

6. Assure that adjoining work is not damaged by installation of this work.

7. Provide temporary protection as required and repair all damage to such work.

XIII. Clean-up

1. The contractor shall be responsible for the removal and disposal of all trash connected with uncrating and assembling furniture and other items installed under this contract. Final acceptance from the contractor shall not occur until **all** trash connected with furniture installation is removed from the site.

2. Recyclable cardboard products shall be disposed of in accordance with applicable statutes, in respective containers.

3. Packing materials shall not be stored in the buildings for any period exceeding 24 hours.

4. Personal trash (food wrappers, drink containers, etc.,) shall be removed from the site daily by the contractor.

5. Immediately after installation and adjustment, clean all surfaces to remove all marks, soil, and foreign matter. Just prior to substantial completion, recheck all components and perform all required additional cleaning.

XIV. Installer Qualifications

1. Furnish proof of familiarity with equipment to be installed.

2. Provide list of at least three previous projects, giving names of projects, scope, and name and telephone number of individuals at facility to contact.

3. Furnish proof of financial and technical resources to assure prompt performance in delivery and installation and in-service training of hospital personnel.

4. Provide competent supervision and installation personnel.

XV. Conformance Standards

Contractor shall provide installation service and ensure that the equipment functions in accordance with the equipment manufacturer's technical performance specifications. Contractor shall conform to all regulations to include but not be limited to federal, state, and local governing any chemicals, equipment or work which may be used or performed in the work under this contract

XVI. Certified Trained Technicians & Key Personnel

The installation and testing shall be performed by vendor trained personnel in accordance with the agreement. In addition, each report must, at a minimum, document the following data legibly and in complete detail.

- A. Name of contractor and contract number.
- B. Name of FSE who performed services.
- C. Contractor service ESR number/log number.
- D. Date, time (starting and ending), equipment downtime and hours on-site for service call.
- E. Identification of equipment to be provided:
 - 1) Inventory ID number,
 - 2) Manufacturer's name,
 - 3) Device name,
 - 4) Model number,
 - 5) Serial number,
 - 6) Any other manufacturer's identification numbers.
- F. Itemized Description of Service Performed (including, if applicable, costs associated with after normal working hour services) including:
 - 1) Labor and Travel,
 - 2) Parts (with part numbers),
 - 3) Materials and Circuit Location of problem/corrective action.
- G. Signatures:
 - 1) FSE performing services described
 - 2) Authorized VA Employee who witnessed service described.

NOTE: - Any additional charges claimed must be approved by the COR or designated representative before service is completed.

XVII. Reporting Requirements

The Contractor shall be required to report to the Police Office to check in. This check-in is mandatory. When the service is completed, the FSE shall document services rendered on a legible ESR(s). The FSE shall be required to check out with Engineering and submit the ESR(s) to the COR or designated representative. ALL

ESRs shall be submitted to the equipment user for an "acceptance signature" and to the COR or designated representative for an "authorization signature". If COR or Designated representative is unavailable, a signed, authorized copy of the ESR will be left with the user.

XVIII. Identification, Parking, Smoking & VA Regulations

The Contractor's FSE's shall always wear visible identification while on the premises of the VAMC. The Contractor shall park in the appropriate designated parking areas. Information on parking is available from the VA Police Section. The VAMC will not invalidate or make reimbursement for parking violations of the Contractor under any conditions. Smoking is prohibited inside any building at the VAMC. Possession of weapons is prohibited. Enclosed containers, including tool kits, shall be subject to search. Violations of VA regulations may result in citation answerable in the U United States (Federal) District Court, not a local district, state, or municipal court.

XIX. Security Requirements

VA SECURITY REQUIREMENTS FOR CONTRACTORS

All contractor's and subcontractor's personnel shall be subject to VA Directive 0735, Homeland Security Presidential Directive 12 (HSPD-12) Program, Federal laws, regulations, standards, and VA Handbooks regulating VA personnel regarding information and information system security.

XX. Non-Personal Identity Verification (PIV) Card requests shall be submitted to VA COR (Contracting Officer Representative) by the contractor. Request submission is the contractor's responsibility to properly fill out the documents identified below.

These documents will become a package for submission of Non-PIV Card application:

VA Fingerprinting form

Declaration for Federal Employment (OF306), if there are any questions that were answered "yes" on item 9-13 on this form, fill out the appropriate addendum and include in the package.

Authorization For Release of Information (VA Form 0710)

Self-Certification of Continuous Service

Contractor Background Investigation Request

Non-PIV Card process may take **30-45 days**, depending on the contractor's personnel background check, Special Agreement Check (SAC). SAC is an automated records check conducted by the Federal Bureau of Investigation in collaboration with the Office of Personnel Management (OPM).

Non-PIV Card Applicant is subject to National Agency Check with written Inquiries (NACI) conducted by OPM. This investigation covers a period of 5 years and a review of current records in the OPM Security Investigation Index (SII), DOD Defense Central Investigations Index (DCII), FBI name check, and FBI fingerprint check as well as written inquiries from previous employers and references on the application for employment. It is used for Non-sensitive or Low Risk positions in VA.

Once all documents are complete and properly filled out, hand carry and submit to VA COR. Do not send completed forms through email due to Personal Identifiable Information.

VA COR will then provide all documents to Engineering Service's VA PIV Sponsor/Manager to initiate the Non-PIV process.

PIV Sponsor/Manager will notify each applicant when to proceed for fingerprinting appointment.

Each applicant shall be fingerprinted at VA Southern Nevada Healthcare System's PIV Office, located first floor in Building 6 (Administration Building), 6900 N. Pecos Road, N. Las Vegas, NV 89086. Each applicant shall sign in at the Security Desk.

VA COR or PIV Sponsor/Manager will provide status of each applicant's Non-PIV Card. Non-PIV Card is critical for the construction start date, as the contractor's personnel without Non-PIV Card may result with a restricted, limited, or no access to the job site. See attached blank forms/documents that are required for submission of Non-PIV Card application for each of contractors/sub-contractors

Contractor shall not require access to the VA internal trusted network for this scope. The certification and accreditation (C&A) requirements do not apply and a Security Accreditation Package is not required.

XXI. Source Quality Control

1. Systems furniture manufacturer shall have minimum 5 years of continuous experience in manufacture of all systems components and accessories.

2. Manufacturer shall furnish proof of successful completion of at least three projects of similar scope within that time; furnish names of projects, scope, and name and telephone number of individual at facility to contact.

3. Furnish proof of financial and technical resources to assure prompt performance in production and delivery

The identified Sole Source Vendor shall be subject to the Federal laws, regulations, standards, and VA Directives and Handbooks regarding information and information system security as delineated in standard acquisition guidelines. Per the VA handbook 6500.6, no VA sensitive information will be transferred, shared, or stored with said vendor. As such, no additional mechanisms will be needed to ensure the protection of information.

XXII. SECURITY REQUIREMENTS FOR UNCLASSIFIED INFORMATION TECHNOLOGY SECURITY RESOURCES

a. The contractor and their personnel shall be subject to the same Federal laws, regulations, standards and VA policies as VA personnel, regarding information and information system security. These include, but are not limited to Federal Information Security Management Act (FISMA), Appendix III of OMB Circular A-130, and guidance and standards, available from the Department of Commerce's National Institute of Standards and Technology (NIST). This also includes the use of common security configuration available from NIST's Web site at: <http://checklists.nist.gov>.

b. To ensure that appropriate security controls are in place, contractors must follow the procedures set forth in "VA Information and Information System Security/Privacy Requirements for IT Contractors" located at the following site:
<http://www.iprm.oit.va.gov>.

c. These provisions shall apply to all contracts in which VA sensitive information is stored, generated, transmitted, or exchanged by VA, a contractor, subcontractor or a third-party, or on behalf of any of these entities regardless of format or whether it resides on a VA system or contractor/subcontractor's electronic information system(s) operating for or on the VA behalf.

XXIII. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS

a. A contractor/subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees, subcontractors, and affiliates only to the extent necessary to perform the services specified in the contract, agreement, or task order.

b. All contractors, subcontractors, and third-party servicers and associates working with VA information are subject to the same investigative requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors must be in accordance with VA Directive and Handbook 0710, *Personnel Suitability and Security Program*. The Office for Operations, Security, and Preparedness is responsible for these policies and procedures.

e. The contractor or subcontractor must notify the COR immediately when an employee working on a VA system or with access to VA information is reassigned or leaves the contractor or subcontractor's employ. The COR must also be notified immediately by the contractor or subcontractor prior to an unfriendly termination.

XXIV. VA INFORMATION CUSTODIAL LANGUAGE

a. Information made available to the contractor or subcontractor by VA for the performance or administration of this contract or information developed by the contractor/subcontractor in performance or administration of the contract shall be used only for those purposes and shall not be used in any other way without the prior written agreement of the VA. This clause expressly limits the contractor/subcontractor's rights to use data as described in Rights in Data - General, FAR 52.227-14(d) (1).

b. VA information should not be co-mingled, if possible, with any other data on the

contractors/subcontractor's information systems or media storage systems in order to ensure VA requirements related to data protection and media sanitization can be met. If co-mingling must be allowed to meet the requirements of the business need, the contractor must ensure that VA's information is returned to the VA or destroyed in accordance with VA's sanitization requirements. VA reserves the right to conduct on site inspections of contractor and subcontractor IT resources to ensure data security controls, separation of data and job duties, and destruction/media sanitization procedures are in compliance with VA directive requirements.

c. Prior to termination or completion of this contract, contractor/subcontractor must not destroy information received from VA, or gathered/created by the contractor while performing this contract without prior written approval by the VA. Any data destruction done on behalf of VA by a contractor/subcontractor must be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, *Records and Information Management* and its Handbook 6300.1 *Records Management Procedures*, applicable VA Records Control Schedules, and VA Handbook 6500.1, *Electronic Media Sanitization*. Self-certification by the contractor that the data destruction requirements above have been met must be sent to the COR within 30 days of termination of the contract.

d. The contractor/subcontractor must receive, gather, store, back up, maintain, use, disclose and dispose of VA information only in compliance with the terms of the contract and applicable Federal and VA information confidentiality and security laws, regulations and policies. If Federal or VA information confidentiality and security laws, regulations and policies become applicable to the VA information or information systems after execution of the contract, or if NIST issues or updates applicable FIPS or Special Publications (SP) after execution of this contract, the parties agree to negotiate in good faith to implement the information confidentiality and security laws, regulations and policies in this contract.

e. The contractor/subcontractor shall not make copies of VA information except as authorized and necessary to perform the terms of the agreement or to preserve electronic information stored on contractor/subcontractor electronic storage media for restoration in case any electronic equipment or data used by the contractor/subcontractor needs to be restored to an operating state. If copies are made for restoration purposes, after the restoration is complete, the copies must be appropriately destroyed.

f. If VA determines that the contractor has violated any of the information confidentiality, privacy, and security provisions of the contract, it shall be sufficient grounds for VA to withhold payment to the contractor or third party or terminate the contract for default or terminate for cause under Federal Acquisition Regulation (FAR) part 12.

g. In accordance with 45 CFR 164.502(e), the Privacy Rule includes exceptions to the Business Associate Standard. This requirement meets the exception and does not require a Business Associate agreement in order for Covered Entity to disclose Protected Healthcare Information to the contractor for treatment.

h. The contractor/subcontractor must store, transport, or transmit VA sensitive information in an encrypted form, using VA-approved encryption tools that are, at a minimum, FIPS 140-2 validated.

i. The contractor/subcontractor's firewall and Web services security controls, if applicable, shall meet or exceed VA's minimum requirements. VA Configuration Guidelines are available upon request.

j. The records created in accordance with this contract belong to the VASNHS and should be returned to the VASNHS and/or destroyed in accordance with VHA RCS 10-1. Destruction should only occur with advance notice and guidance from the Records Management Officer at the VASNHS. Records shall be safeguarded in accordance with the Privacy Act, Health Insurance Portability and Accountability Act (HIPAA) and the VASNHS Release of Information Unit. Patient Medical information is considered privileged and shall not be disclosed or revealed in any way without prior written permission from the VA Chief, Health Information Management Section.

k. The Contractor shall only release medical information obtained during the course of this contract to those VA staff members involved in the necessary management and treatment of that individual patient. Patient list and name of patients are considered privileged information and shall not be disclosed or revealed in any way for use outside the Contractor without prior written permission from the referring VA Chief of Staff. Veterans requesting copies of medical information generated by the contractor will be referred to the VASNHS Release of Information Unit.

l. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the contractor/subcontractor may use and disclose VA information only in two other situations: (i) in response to a qualifying order of a court of competent jurisdiction, or (ii) with VA's prior written approval. The contractor/ subcontractor must refer all requests for, demands for production of, or inquiries about, VA information and information systems to the VASNHS Release of Information Unit for response.

m. Notwithstanding the provision above, the contractor/subcontractor shall not release VA records protected by Title 38 U.S.C. 5705, confidentiality of medical quality assurance records and/or Title 38 U.S.C. 7332, confidentiality of certain health records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse, or infection with human immunodeficiency virus. If the contractor/subcontractor is in receipt of a court order or other requests for the

above mentioned information, that contractor/ subcontractor shall immediately refer such court orders or other requests to the VASNHS Release of Information Unit for response.

n. All electronic storage media used on non-VA leased or non-VA owned IT equipment that is used to store, process, or access VA information must be handled in adherence with VA Handbook 6500.1, *Electronic Media Sanitization* upon: (i) completion or termination of the contract or (ii) disposal or return of the IT equipment by the contractor/subcontractor or any person acting on behalf of the contractor/subcontractor, whichever is earlier. Media (hard drives, optical disks, CDs, back-up tapes, etc.) used by the contractors/subcontractors that contain VA information must be returned to the VA for sanitization or destruction or the contractor/subcontractor must self-certify that the media has been disposed of per 6500.1 requirements. This must be completed within 30 days of termination of the contract.

The C&A requirements do not apply, and that a Security Accreditation Package is not required.

Ensure that a Contractor Security Control Assessment (CSCA) is completed within 30 days of contract approval and yearly on the renewal date of the contract.

Ensure that the CSCA is sent to the ISO and the OCS Certification Program Office for review to ensure that appropriate security controls are being implemented in service contracts.

Ensure a copy of the CSCA is maintained in the Security Management and Reporting Tool (SMART) database. COR will provide a copy of the completed CSCA to ISO for uploading into SMART database.

XXV. HEALTH INSURANCE PORTABILITY AND ACCOUNTABILITY ACT (HIPAA):

Contractor shall take reasonable measures to ensure patient privacy and confidentiality. The contractor agrees to take all reasonable precautions to safeguard patient information from unauthorized access or modification, in both electronic and hard-copy formats. This includes not only electronic security measures such as "strong" user passwords on computer systems, but also physical barriers to prevent unauthorized use of computer work-stations; that hard copy patient files are in secured lockable areas, that files are in lockable cabinets, that the cabinets can in fact be locked, i.e., keys are available, and the locking mechanisms work properly. This precaution also includes the proper transfer of patient information via electronic means, such as faxing or system to system transmission.

That only the minimum necessary patient information is used to provide appropriate

service to the correct patient.

That the undersigned understands that all parties are bound by the requirements of the "Health Insurance Portability and Accountability Act of 1996" which provide guidance on the protection of patient privacy and confidentiality. This Act mandates that all government agencies, and those bodies with whom they contract, must be in compliance with the directives of the Act.

XXVI. SECURITY INCIDENT INVESTIGATION

a. The term "security incident" means an event that has, or could have, resulted in unauthorized access to, loss or damage to VA assets, or sensitive information, or an action that breaches VA security procedures. The contractor/subcontractor shall immediately notify the COR and simultaneously, the designated ISO and Privacy Officer for the contract of any known or suspected security/privacy incidents, or any unauthorized disclosure of sensitive information, including that contained in system(s) to which the contractor/subcontractor has access.

b. To the extent known by the contractor/subcontractor, the contractor/subcontractor's notice to VA shall identify the information involved, the circumstances surrounding the incident (including to whom, how, when, and where the VA information or assets were placed at risk or compromised), and any other information that the contractor/ subcontractor considers relevant.

c. With respect to unsecured protected health information, the business associate is deemed to have discovered a data breach when the business associate knew or should have known of a breach of such information. Upon discovery, the business associate must notify the covered entity of the breach. Notifications need to be made in accordance with the executed business associate agreement.

d. In instances of theft or break-in or other criminal activity, the contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG and Security and Law Enforcement. The contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

XXVII. LIQUIDATED DAMAGES FOR DATA BREACH

a. Consistent with the requirements of 38 U.S.C. §5725, a contract may require access to sensitive personal information. If so, the contractor is liable to VA for liquidated damages in the event of a data breach or privacy incident involving any SPI the contractor/subcontractor processes or maintains under this contract.

b. The contractor/subcontractor shall provide notice to VA of a “security incident” as set forth in the Security Incident Investigation section above. Upon such notification, VA must secure from a non-Department entity or the VA Office of Inspector General an independent risk analysis of the data breach to determine the level of risk associated with the data breach for the potential misuse of any sensitive personal information involved in the data breach. The term 'data breach' means the loss, theft, or other unauthorized access, or any access other than that incidental to the scope of employment, to data containing sensitive personal information, in electronic or printed form, that results in the potential compromise of the confidentiality or integrity of the data. Contractor shall fully cooperate with the entity performing the risk analysis. Failure to cooperate may be deemed a material breach and grounds for contract termination.

c. Each risk analysis shall address all relevant information concerning the data breach, including the following:

(1) Nature of the event (loss, theft, unauthorized access);

(2) Description of the event, including:

(a) date of occurrence;

(b) data elements involved, including any PII, such as full name, social security number, date of birth, home address, account number, disability code;

(3) Number of individuals affected or potentially affected;

(4) Names of individuals or groups affected or potentially affected;

(5) Ease of logical data access to the lost, stolen or improperly accessed data in light of the degree of protection for the data, e.g., unencrypted, plain text;

(6) Amount of time the data has been out of VA control;

(7) The likelihood that the sensitive personal information will or has been compromised (made accessible to and usable by unauthorized persons);

- (8) Known misuses of data containing sensitive personal information, if any;
- (9) Assessment of the potential harm to the affected individuals;
- (10) Data breach analysis as outlined in 6500.2 Handbook, *Management of Security and Privacy Incidents*, as appropriate; and
- (11) Whether credit protection services may assist record subjects in avoiding or mitigating the results of identity theft based on the sensitive personal information that may have been compromised.

d. Based on the determinations of the independent risk analysis, the contractor shall be responsible for paying to the VA liquidated damages in the amount of \$37.50 per affected individual to cover the cost of providing credit protection services to affected individuals consisting of the following:

- (1) Notification;
- (2) One year of credit monitoring services consisting of automatic daily monitoring of at least 3 relevant credit bureau reports;
- (3) Data breach analysis;
- (4) Fraud resolution services, including writing dispute letters, initiating fraud alerts and credit freezes, to assist affected individuals to bring matters to resolution;
- (5) One year of identity theft insurance with \$20,000.00 coverage at \$0 deductible; and
- (6) Necessary legal expenses the subjects may incur to repair falsified or damaged credit records, histories, or financial affairs.

XXVIII. SECURITY CONTROLS COMPLIANCE TESTING

On a periodic basis, VA, including the Office of Inspector General, reserves the right to evaluate any or all of the security controls and privacy practices implemented by the contractor under the clauses contained within the contract. With 10 working-day's notice, at the request of the government, the contractor must fully cooperate and assist in a government-sponsored security controls assessment at each location wherein VA information is processed or stored, or information systems are developed, operated, maintained, or used on behalf of VA, including those initiated by the Office of Inspector General. The government may conduct a security control

assessment on shorter notice (to include unannounced assessments) as determined by VA in the event of a security incident or at any other time.

XXIX. TRAINING

Contractor/subcontractor employees requiring access to VA information shall complete privacy training annually as required for covered entities under the HIPAA.

The COR shall ensure employees complete training within 1 week of the initiation of the contract and annually thereafter, as required.

Failure to complete the mandatory annual training annually, within the timeframe required, is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the training and documents are complete.

XXX. PLACE OF PERFORMANCE

The contractor shall coordinate delivery and installation of furnishings at the Southern Nevada VA Healthcare System, Building 6, First Floor, Rm 1H114. Work hours will be between 07:30 am – 4:00 pm, Monday – Friday. Loading dock can be made available with appropriate advance notice and coordination.

XXXI. PERIOD OF PERFORMANCE

The vendor is on notice that time is of the essence in the performance of this contract. The material order delivery shall be no later than 3 weeks After Receipt of Order (ARO), with coordination of specific dates mutually agreed upon by SNVAHCS and the awarded contractor. Upon receipt of the commercial equipment, the contractor will have 21 days to complete the installation.

XXXII. PAYMENT SCHEDULE

The contractor shall bill on completion and acceptance of the work. Invoices will be paid upon the completion and acceptance of the procured equipment. Invoices shall include at a minimum, the following information: Contract Number, Purchase Order/Task Order Number, Contractor Name, and Item(s) installed.

Additional Charges

There shall be no additional charge for time spent at the site (during, or after the normal hours of coverage) awaiting the arrival of additional FSE and/or delivery of parts.

XXXIII. NON-PERSONAL SERVICES STATEMENT

The contractor employees performing services under this order shall be controlled and always supervised by management personnel of the contractor. The contract

management shall ensure that employees properly comply with the performance work standards outlined in the SOW. The contract employees shall perform their duties independent of, and with occasional supervision of VA COR. The tasks, duties, and responsibilities set forth in the SOW may not be interpreted or implemented in any manner that results in any contractor creating or modifying Federal policy, obligating the appropriate funds for the United States Government, overseeing the work of Federal employees, providing direct personal services to any Federal employee, or otherwise violating contracting regulations.